

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1994

By: Turner

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Sections 1111, as last amended by Section 8, Chapter 452, O.S.L. 2024 and 1112 (21 O.S. Supp. 2024, Section 1111), which relate to the definition of rape and age of consent; increasing certain age limitation for rape; modifying age limitations on convictions for rape; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1111, as last amended by Section 8, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1111), is amended to read as follows:

Section 1111. A. Rape is an act of sexual intercourse involving vaginal or anal penetration accomplished with a male or female within or without the bonds of matrimony who may be of the same or the opposite sex as the perpetrator under any of the following circumstances:

1. Where the victim is under ~~sixteen (16)~~ eighteen (18) years of age;

1 2. Where the victim is incapable through mental illness or any
2 other unsoundness of mind, whether temporary or permanent, of giving
3 legal consent;

4 3. Where force or violence is used or threatened, accompanied
5 by apparent power of execution to the victim or to another person;

6 4. Where the victim is intoxicated by a narcotic or anesthetic
7 agent, administered by or with the privity of the accused as a means
8 of forcing the victim to submit;

9 5. Where the victim is at the time unconscious of the nature of
10 the act and this fact is known to the accused;

11 6. Where the victim submits to sexual intercourse under the
12 belief that the person committing the act is a spouse, and this
13 belief is induced by artifice, pretense, or concealment practiced by
14 the accused or by the accused in collusion with the spouse with
15 intent to induce that belief. In all cases of collusion between the
16 accused and the spouse to accomplish such act, both the spouse and
17 the accused, upon conviction, shall be deemed guilty of rape;

18 7. Where the victim is under the legal custody or supervision
19 of a state agency, a federal agency, a county, a municipality or a
20 political subdivision and engages in sexual intercourse with a
21 state, federal, county, municipal or political subdivision employee
22 or an employee of a contractor of the state, the federal government,
23 a county, a municipality or a political subdivision that exercises
24 authority over the victim, or the subcontractor or employee of a

1 subcontractor of the contractor of the state or federal government,
2 a county, a municipality or a political subdivision that exercises
3 authority over the victim;

4 8. Where the victim is at least sixteen (16) years of age and
5 is less than ~~twenty (20)~~ twenty-two (22) years of age and is a
6 student, or under the legal custody or supervision of any public or
7 private elementary or secondary school, junior high or high school,
8 or public vocational school, and engages in sexual intercourse with
9 a person who is eighteen (18) years of age or older and is an
10 employee of a school system. As used in this paragraph, "employee
11 of a school system" shall include school resource officers employed
12 or contracted by a school district;

13 9. Where the victim is nineteen (19) years of age or younger
14 and is in the legal custody of a state agency, federal agency or
15 tribal court and engages in sexual intercourse with a foster parent
16 or foster parent applicant; or

17 10. Where the victim is a student at a secondary school, is
18 concurrently enrolled at an institution of higher education, and
19 engages in acts pursuant to this subsection with a perpetrator who
20 is an employee of the institution of higher education of which the
21 victim is enrolled.

22 B. "Employee of an institution of higher education", for
23 purposes of this section, means faculty, adjunct faculty,
24 instructors, volunteers, or an employee of a business contracting

1 with an institution of higher education who may exercise, at any
2 time, institutional authority over the victim. Employee of an
3 institution of higher education shall not include an enrolled
4 student who is not more than three (3) years of age or older than
5 the concurrently enrolled student and who is employed or
6 volunteering, in any capacity, for the institution of higher
7 education.

8 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1112, is
9 amended to read as follows:

10 Section 1112. No person can be convicted of rape or rape by
11 instrumentation on account of an act of sexual intercourse with
12 anyone over the age of ~~fourteen (14)~~ fifteen (15) years and under
13 the age of eighteen (18) years, with his or her consent, unless such
14 person was ~~over the age of eighteen (18) years~~ more than four (4)
15 years older than the other person at the time of such act.

16 SECTION 3. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

20

21 60-1-11811 GRS 01/03/25

22

23

24